

language and to law. As pointed out by the Court, no such argument can be reasonably made, and Plaintiff's Opposition proves the point.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2402579	ZMILY vs ZMILY	MOTION TO QUASH DEPOSITION SUBPOENAS

Tentative Ruling: Appearances required.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2600770	SINGH vs UNIVERSAL PROTECTION SERVICE LP	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

CMC and this Hearing is continued to 1026/26 as Plaintiff requested, and the court agrees, for the opportunity to do limited discovery regarding the execution of the arbitration agreement.

The court must grant a petition to compel arbitration unless it finds either: no written agreement to arbitrate exists; the right to compel arbitration has been waived; grounds exist for revocation of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (CCP §1281.2.) A proceeding to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (*Freeman v. State Farm Mutual Auto Insurance Co.* (1975) 14 Cal.3d 473, 479.)

The petition to compel must set forth the provisions of the written agreement and the arbitration clause verbatim, or such provisions must be attached and incorporated by reference. (Cal. R. Ct. 3.1330; see *Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215, 218–219.) “[U]nder this rule, unless there is a dispute over authenticity, it is sufficient for a party moving to compel arbitration to recite the terms of the governing provision.” (*Sprunk v. Prisma LLC* (2017) 14 Cal.App.5th 785, 793.) A petitioner is not required to authenticate the respondent's signature on an arbitration agreement as a preliminary matter in the moving papers and is only required to do so if the signature is challenged. (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 846.)

Defendant has provided an arbitration agreement it contends is electronically signed by Plaintiff. The arbitration agreement is between Plaintiff and Defendant. It applies to all claims that Plaintiff may have against Defendant and Defendant may have against Plaintiff, which could be brought in a court of law, unless otherwise set forth in the

arbitration agreement. (California Arbitration Agreement (Revised: April 13, 2022), ¶ 2.) The scope of the arbitration agreement would cover Plaintiff's claims.

Plaintiff challenges the authenticity of the electronic signature. Plaintiff contends that he does not recall signing the agreement. (Declaration of Makhan Singh, ¶¶ 5-6.) This is sufficient to meet Plaintiff's burden when an electronic signature is involved and requires Defendant to prove by a preponderance of the evidence that the electronic signature belonged to Plaintiff. (*Ruiz, supra*, 232 Cal.App.4th at 846; *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 167.) Defendant argues that more than Plaintiff's failure to recall is needed to meet his burden of proof. However, binding California authority indicates that this evidence is sufficient when an electronic signature is involved. (*Id.*)

Under Civil Code § 1633.9(a), "An electronic record or electronic signature is attributable to a person if it was the act of the person. The act of the person may be shown in any manner, including a showing of the efficacy of any security procedure applied to determine the person to which the electronic record or electronic signature was attributable." "[A] party may establish that the electronic signature was 'the act of the person' by presenting evidence that a unique login and password known only to that person was required to affix the electronic signature, along with evidence detailing the procedures the person had to follow to electronically sign the document and the accompanying security precautions." (*Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541, 545.) In *Ruiz, supra* 232 Cal.App.4th at 843-846, the court found that a generic assertion alone that the electronic signature belonged to the plaintiff was not sufficient.

In the moving documents, Defendant provides a declaration from Kelly Jacobs. She is the Director of Human Resources – Southwest Region for Defendant. (Declaration of Kelly Jacobs, ¶ 1.) Ms. Jacobs provides what her current title is. However, she does not indicate how long she has been working for Defendant. She states that she is familiar with iCIMS and the way Defendant onboards new employees and presents new hire paperwork. (*Id.* at ¶ 7.) She provides that when an individual applies for a position with Defendant, they must complete onboarding process before the employment relationship with Defendant is formally begins. (*Id.* at ¶ 8.) She states that when Plaintiff was rehired on August 3, 2022, he used the electronic onboarding system called iCIMS system to complete his onboarding process, including executing the arbitration agreement. (*Id.* at ¶ 9.) She states that the system is password protected. (*Id.* at ¶ 9.) Ms. Jacobs states that the Human Resources Coordinator at the region's office emails a link from iCIMS to potential new employees' email addresses, which are provided to the coordinator by the potential new employees. (*Id.* at ¶ 9.a.) The new employees must click on the link and enter their unique username and password, which is created at the time they applied for the position. (*Id.* at ¶ 9.b.) If a new employee forgets their unique password, only they can create a new password by using their personal emails address. (*Id.*) While some of Defendant's human resources employees have access to iCIMS accounts, they only have the ability to view and print completed onboarding documents in "read-only" mode. (*Id.*) She states that only a potential new employee may sign onboarding documents by using their correct username and unique password. (*Id.* at ¶ 9.d.) She provides that the electronic onboarding process cannot be completed until the employee signs all

onboarding forms, which includes the arbitration agreement. (*Id.*) Ms. Jacob provides that she has reviewed Plaintiff's onboarding records and found that he completed the onboarding process in August of 2022. (*Id.* at ¶ 14.)

Plaintiff contends that he was first hired by Defendant in May 2015. (Declaration of Makhan Singh, ¶ 3.) He contends that he was rehired in approximately 2018 and was employed by Defendant until September 2025. (*Id.* at ¶¶ 3-4.) Plaintiff contends that he began working for Defendant years before August 2022. (*Id.* at ¶ 28.) He states he does not remember reviewing documents or electronically signing them on August 3, 2022. (*Id.* at ¶¶ 5-6.) Plaintiff does not deny that he completed electronic records for Defendant at some point in time, but it appears he did this when he was hired years before 2022. (*Id.* at ¶ 10.) Defendant contends that Plaintiff signed the arbitration agreement as part of his onboarding process in August 2022.

Unconscionability:

Plaintiffs contend the agreement is unconscionable. "Unconscionable arbitration agreements are not enforceable." (*Wherry v. Award, Inc.* (2011) 192 Cal.App.4th 1242, 1245.) "To be voided on this ground, the agreement must be both procedurally and substantively unconscionable." (*Ibid.*) "But they need not be present to the same degree." (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114 (*Armendariz*)). Rather, the court invokes a "sliding scale" to determine unconscionability: "The more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa." (*Ibid.*) "The burden of proving unconscionability rests upon the party asserting it." (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 126.) Unconscionability is a question of law. (*Malone v. Superior Court* (2014) 226 Cal.App.4th 1551, 1562.)

Procedural unconscionability may be proven by showing of oppression which is present when a party is given no meaningful opportunity to negotiate the terms of the contract which is presented on a take-it-or-leave-it basis. (*Wherry v. Award, Inc., supra*, 192 Cal.App.4th at 1246.)

"Substantive unconscionability addresses the fairness of the terms in dispute." (*Wherry v. Award, Inc., supra*, 192 Cal.App.4th at 1248.)

While Plaintiff asserts that the agreement is unconscionable and opposes Defendant's assertion that it is fair, he does nothing to support this argument. He fails to cite to applicable case law or clearly identify why the agreement is unconscionable. As such, this argument fails.